

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
TAHARQA DEJESUS, SHAKA JOHNSON,
RONALD MCPHATTER AND ROBERT LUFTIG,

Plaintiffs,

vs.

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JOSEPH SOLOMON, POLICE OFFICER
MIGUEL CASANOVA, POLICE OFFICER
ANTHONY CACACE, SARGENT HANTZ
MULLER, SARGENT GREGORY MACKIE,
POLICE OFFICER NELSON PEREZ, POLICE
OFFICER CHRISTOPHER MCSWEENEY, POLICE
OFFICER CARMINE ZANCA, POLICE OFFICER
CHANCELLOR BISHOP, POLICE OFFICER RORY
MANGRA, POLICE OFFICER ERIK MERIZALDE
AND POLICE OFFICERS JOHN DOE NUMBERS
1-5, UNKNOWN AND INTENDED TO BE OTHER
NEW YORK CITY POLICE OFFICERS INVOLVED
IN THE OCCURRENCES HEREIN,

Defendants.
-----X

08 CV 3994(FB)(RER)

**SECOND AMENDED
COMPLAINT**

**JURY TRIAL
DEMANDED**

Plaintiffs TAHARQA DEJESUS, SHAKA JOHNSON, RONALD MCPHATTER and
ROBERT LUFTIG, by their attorneys, Donaldson, Chilliast & McDaniel, LLP, complaining of
the defendants herein, respectfully allege as follows:

PRELIMINARY STATEMENT

1. This is an action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. §§1983, 1985, 1986 and 1988, and of rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New

York. Plaintiffs TAHARQA DEJESUS, SHAKA JOHNSON and RONALD MCPHATTER are African-American men and United States citizens. Plaintiff ROBERT LUFTIG is of Hispanic and African-American decent and he is a United States citizen. This action began with two main incidents which occurred on September 28, 2007 and October 23, 2007, both in Kings County, New York. Such claims are continuing. The first incident involved plaintiffs TAHARQA DEJESUS, SHAKA JOHNSON, RONALD MCPHATTER and ROBERT LUFTIG and defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOSEPH SOLOMON, POLICE OFFICER MIGUEL CASANOVA, POLICE OFFICER ANTHONY CACACE, SARGENT HANTZ MULLER, SARGENT GREGORY MACKIE, POLICE OFFICER NELSON PEREZ, POLICE OFFICER CHRISTOPHER MCSWEENEY, POLICE OFFICER CARMINE ZANCA, and POLICE OFFICERS JOHN DOE NUMBERS 1-5. The second incident involved plaintiffs TAHARQA DEJESUS and RONALD MCPHATTER and defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER CHANCELLOR BISHOP, POLICE OFFICER RORY MANGRA and POLICE OFFICER ERIK MERIZALDE. Plaintiffs, while doing nothing illegal, were deprived of their constitutional and common law rights when defendants POLICE OFFICER JOSEPH SOLOMON, POLICE OFFICER MIGUEL CASANOVA, POLICE OFFICER ANTHONY CACACE, SARGENT HANTZ MULLER, SARGENT GREGORY MACKIE, POLICE OFFICER NELSON PEREZ, POLICE OFFICER CHRISTOPHER MCSWEENEY, POLICE

OFFICER CARMINE ZANCA, POLICE OFFICER CHANCELLOR BISHOP, POLICE OFFICER RORY MANGRA, POLICE OFFICER ERIK MERIZALDE and POLICE OFFICERS JOHN DOE NUMBERS 1-5, UNKNOWN AND INTENDED TO BE OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN THE OCCURRENCES HEREIN (hereinafter referred to as the “individual police officer defendants”), assaulted and battered plaintiffs, unlawfully detained plaintiffs, falsely arrested plaintiffs, unlawfully imprisoned plaintiffs and falsely accused plaintiffs of crimes that they did not commit, causing plaintiffs to become physically and psychologically injured and prosecuted for crimes that they did not commit. All but one of the underlying criminal cases against plaintiffs were dismissed and sealed prior to trial and the case against plaintiff DEJESUS involving the second incident was adjourned in contemplation of dismissal and sealed after six months.

JURISDICTION

2. This action is brought pursuant to Civil Rights Act, 42 U.S.C. §§1983, 1985, 1986 and 1988, and of rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§1331 and 1343 and the aforementioned statutory and constitutional provisions.
3. Plaintiffs further invoke this Court's supplemental jurisdiction, pursuant to 28 U.S.C. §1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that give rise to the federally based claims and causes of action.

VENUE

4. Venue is proper for the United States District Court for the Eastern District of New York pursuant to 28 U.S.C. §1391 (b) because the claims arose in this district.

PARTIES

5. Plaintiff TAHARQA DEJESUS, was and still is a resident of the County of Kings, in the City and State of New York.
6. Plaintiff SHAKA JOHNSON, was and still is a resident of the County of Kings, in the City and State of New York.
7. Plaintiff RONALD MCPHATTER, was and still is a resident of the County of Kings, in the City and State of New York.
8. Plaintiff ROBERT LUFTIG, was and still is a resident of the County of Kings, in the City and State of New York.
9. At all times relevant herein, defendant P.O. JOSEPH SOLOMON was a police officer of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. He has since been transferred to the 66th Precinct Detective Squad. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
10. At all times relevant herein, defendant P.O. MIGUEL CASANOVA was a police officer of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. He has since been transferred to the

66th Precinct Detective Squad. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.

11. At all times relevant herein, defendant P.O. ANTHONY CACACE was a police officer of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
12. At all times relevant herein, defendant SARGENT HANTZ MULLER was a Sargent of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
13. At all times relevant herein, defendant SARGENT GREGORY MACKIE was a Sargent of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
14. At all times relevant herein, defendant P.O. NELSON PEREZ was a police officer of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY

POLICE DEPARTMENT and CITY OF NEW YORK.

15. At all times relevant herein, defendant P.O. CHRISTOPHER MCSWEENEY was a police officer of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
16. At all times relevant herein, defendant P.O. CARMINE ZANCA was a police officer of the New York City Police Department assigned to the PSA 1 Housing Precinct in the County of Kings, City and State of New York. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
17. At all times relevant herein, defendant P.O. CHANCELLOR BISHOP was a police officer of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. He has since transferred to the Management Division. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
18. At all times relevant herein, defendant P.O. RORY MANGRA was a police officer of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. He has since transferred to the 84th Precinct. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF

NEW YORK.

19. At all times relevant herein, defendant P.O. ERIK MERIZALDE was a police officer of the New York City Police Department assigned to the 78th Precinct in the County of Kings, City and State of New York. He has since transferred to the Transit District 33. At all times relevant herein, he was acting in the capacity of agent, servant and employee of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
20. At all times relevant herein, defendants POLICE OFFICERS JOHN DOE NUMBERS 1-5, UNKNOWN AND INTENDED TO BE OTHER NEW YORK CITY POLICE OFFICERS INVOLVED IN THE OCCURRENCES HEREIN were police officers of the New York City Police Department and they are believed to be assigned to the 78th Precinct and other precincts in the County of Kings, City and State of New York. At all times relevant herein, they were acting in the capacity of agents, servants and employees of defendants NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
21. At all times relevant herein, the individual police officer defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of defendant NEW YORK CITY POLICE DEPARTMENT and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of defendant NEW YORK CITY POLICE DEPARTMENT at all times relevant herein, with the power and authority vested in them as officers, agents

and employees of defendant NEW YORK CITY POLICE DEPARTMENT and incidental to the lawful pursuit of their duties as officers, employees and agents of defendant NEW YORK CITY POLICE DEPARTMENT.

22. In the alternative, at all times relevant hereto, the individual police officer defendants were acting individually and they are also being sued herein in their individual capacities.
23. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by defendant NEW YORK CITY POLICE DEPARTMENT.

STATEMENT OF FACTS

FIRST INCIDENT-SEPTEMBER 28, 2007

24. On or about September 28, 2007, beginning at approximately 9:30 p.m., at the vicinity of 572 and 574 Warren Street, in the County of Kings and the City and State of New York, plaintiffs TAHARQA DEJESUS, SHAKA JOHNSON and RONALD MCPHATTER, who resided at 572 Warren Street, were walking outside in a public area near said location.
25. Upon information and belief, at the above-mentioned date, time and place, defendants P.O. JOSEPH SOLOMON, P.O. MIGUEL CASANOVA, P.O.

ANTHONY CACACE, SGT. HANTZ MULLER, SGT. GREGORY MACKIE, P.O. NELSON PEREZ, P.O. CHRISTOPHER MCSWEENEY, P.O. CARMINE ZANCA, and POLICE OFFICERS JOHN DOE NUMBERS 1-5 were responding to a false report of an officer being stabbed in the projects across the street from said location.

26. Defendants P.O. JOSEPH SOLOMON and P.O. MIGUEL CASANOVA walked towards plaintiffs TAHARQA DEJESUS, SHAKA JOHNSON and RONALD MCPHATTER and P.O. SOLOMON began to harass plaintiff DEJESUS by addressing him by name, speaking to him in a familiar manner about his family and mother and pretending like he knew him well because he was a confidential informant with the police department in an apparent attempt to embarrass him in front of several other people in the area.
27. Defendant P.O. SOLOMON reached out to shake plaintiff DEJESUS' hand, but plaintiff DEJESUS refused to shake defendant P.O. SOLOMON's hand and told him repeatedly that he did not want to talk to him.
28. As plaintiffs DEJESUS, JOHNSON and MCPHATTER attempted to walk away, defendants P.O.'s SOLOMON and CASANOVA followed plaintiffs, while defendant P.O. SOLOMON told plaintiff DEJESUS in substance that you don't want to talk to me now, but if I were in plain clothes, then you would talk to me.
29. Some of the other individuals laughed at plaintiff DEJESUS and stated in substance that they did not know he was like that, meaning that he was a confidential informant.
30. Defendants P.O.'s SOLOMON and CASANOVA continued to follow plaintiffs DEJESUS and MCPHATTER to their building and both officers harassed plaintiffs

by yelling comments to them at close proximity.

31. As plaintiffs DEJESUS, JOHNSON and MCPHATTER were walking into their building, defendant P.O. SOLOMON stopped plaintiff DEJESUS, searched him in an extremely humiliating and unnecessary manner, including putting his hand down the front of plaintiff DEJESUS' pants, and asked him for his identification.
32. Plaintiff DEJESUS told defendant P.O. SOLOMON in substance that he did not have any identification on him, that it was inside of his apartment, that he lives in the building on the first floor, that the officer knows he lives in the building and he asked why he needed to see his identification and what he did wrong.
33. Plaintiff DEJESUS asked the officers if he could get his identification, but the officers told him in substance that they knew he lived on the first floor and that they could go to his apartment and get his identification.
34. Plaintiffs DEJESUS and MCPHATTER told the officers in substance that they did not need to go to plaintiff DEJEUS' apartment just to get his identification and they asked in substance why did they want to see his identification when they already knew he lived in the building.
35. Plaintiff JOHNSON, who is plaintiff DEJESUS' brother and who also lived in the same apartment, asked the officers if he could get the identification and bring it to the officers, but the officers insisted on going into the apartment.
36. Other people began to tell the officers that plaintiffs lived in the building, that they did not have a warrant to go into the apartment and that it was not right what they were doing to plaintiffs.

37. Defendants P.O.'s SOLOMON and CASANOVA told the people in the crowd, which included older women, to shut up and the officers appeared to get more and more aggravated as the crowd became larger and more vocal.
38. Plaintiff RONALD MCPHATTER asked the officers what was the problem and the officers repeatedly told plaintiff MCPHATTER to mind his business and go home. Plaintiff MCPHATTER responded in substance that he was minding his business and that he was home because he lived in the building. Plaintiff MCPHATTER could not go to his home because the officers blocked the entrance to the building and the officers refused to let him walk into the building.
39. The officers directed plaintiff DEJESUS to step outside and as plaintiff DEJESUS walked out of the building, several officers, including POLICE OFFICER ANTHONY CACACE, rushed plaintiff DEJESUS, tackled him to the ground onto the concrete, and officers CACACE, SOLOMON and others beat on plaintiff DEJESUS, including, but not limited to, punching him, kicking him, hitting him with their batons, banging his head into the ground, putting their boot on the top of plaintiff's face and mushing the side of his face into the concrete and striking him repeatedly. One or more officers handcuffed plaintiff DEJESUS with his hands behind his back in an extremely tight manner and they picked him up by the link of the cuffs, pushed and pulled him to a marked police van, banged his head against the window and threw him into the van.
40. Plaintiff MCPHATTER asked the officers in substance why were they arresting him and what did he do, referring to plaintiff DEJESUS, and defendant POLICE

OFFICER CASANOVA shoved plaintiff MCPHATTER several times and then defendant SGT. HANTZ MULLER shoved plaintiff MCPHATTER several times into a fence.

41. Defendants SGT. MULLER, POLICE OFFICER NELSON PEREZ and SGT. GREGORY MACKIE and other defendant police officers threw plaintiff MCPHATTER down to the ground, kicked him, punched him, hit him with batons repeatedly and pulled his pants down.
42. During the time that the police officers were beating on plaintiff MCPHATTER, his mother walked out and observed some of the incident.
43. One or more police officers attempted to spray pepper spray at plaintiff MCPHATTER and others, but plaintiff MCPHATTER was able to duck his head down to avoid being sprayed directly in his eyes and face. Plaintiff MCPHATTER's mother, neighbor and others were sprayed with the pepper spray.
44. One or more police officers handcuffed plaintiff MCPHATTER in an extremely tight manner with his hands behind his back.
45. At the time of this incident, plaintiff MCPHATTER wore a bracelet with a basketball, which matched a ring. Such bracelet was valued at approximately Two Thousand Dollars (\$2,000.00) and it was made of diamonds and white and yellow gold. As a result of the above-mentioned conduct by the defendants, plaintiff MCPHATTER'S bracelet fell off of his wrist, it was picked up by one of the defendant police officers and never vouchered, nor returned to plaintiff MCPHATTER.

46. While the officers were beating on plaintiff DEJESUS, plaintiff ROBERT LUFTIG, who was standing several feet away from the defendant police officers, pulled out his cell phone and began video taping the officers beating on plaintiff DEJESUS.
47. Plaintiff MCPHATTER heard one of the officers yell in substance stop, we are being videotaped, we are on camera.
48. Defendant P.O. CASANOVA approached plaintiff LUFTIG, asked him in substance what the fuck he was doing with that camera and why the fuck was he filming and immediately grabbed him by the back of the collar, threw him to the ground and handcuffed him with his hands behind his back in an extremely tight manner. Plaintiff LUFTIG repeatedly asked the officers not to break his cell phone and the officers took his cell phone, picked him up by the cuffs and threw him into the marked police van.
49. Also as plaintiff DEJESUS was being beaten by the officers, plaintiff SHAKA JOHNSON was pushed back into the building and he tried to go back to his apartment to get his mother. Several police officers were banging on the rear door of the building and plaintiff JOHNSON continued walking to get his mother, while several other people remained in the hallway.
50. Plaintiff JOHNSON heard the rear door open and saw several police officers running towards him. One of the officers told plaintiff JOHNSON to stop and another stated in substance, you don't want to open the fucking door for us?
51. Defendant POLICE OFFICER CARMINE ZANCA and approximately three other defendant police officers, beat on him, including, but not limited to, punching him

in his mouth and about his body, hitting him with batons, knocking him to the ground, kicking, stomping and striking him repeatedly, stepping on his ankle, pushing a knee into his back and handcuffing him with his hands behind his back in an extremely tight manner.

52. The officers lifted plaintiff JOHNSON up by his handcuffs, pushed, pulled and dragged him to a police van, as a crowd of people yelled at the officers and stated in substance that it was wrong what they were doing to plaintiffs.
53. One of the officers swung a police radio by its antenna and hit plaintiff JOHNSON on his head with the radio and another police officer banged plaintiff JOHNSON's head against the window and door of the van. One or more of the police officers threw plaintiff JOHNSON into the van and they tried to slam the door of the van onto his legs, which caused the glass on the van's door to break.
54. Defendants P.O. SOLOMON, P.O. CASANOVA, SGT. MACKIE, SGT. MULLER, P.O. CHRISTOPHER MCSWEENEY and P.O. CACACE sprayed pepper spray directly at plaintiffs DEJESUS, JOHNSON and LUFTIG repeatedly and the pepper spray got into their eyes, on their faces, skin and clothing.
55. All three plaintiffs yelled in agony because they could not see, they could not breathe and their eyes and skin were burning. Plaintiffs begged the officers to stop, but the officers continued to spray an excessive amount of pepper spray directly at plaintiffs DEJESUS, JOHNSON and LUFTIG and continued reloading the canisters. The officers forced plaintiffs DEJESUS, JOHNSON and LUFTIG to remain inside of the van with the mace burning their eyes and skin for an extended period of time, before

they were removed from the van and taken to other vehicles.

56. When the officers moved plaintiff LUFTIG from the van to another vehicle, they pulled up his arms and pulled him by the chain of the handcuffs, causing extreme pain.
57. Plaintiffs DEJESUS, JOHNSON, MCPHATTER and LUFTIG were taken to the precinct, placed into holding cells, fingerprinted, photographed, otherwise processed, put through the system and transported to central booking.
58. Plaintiff MCPHATTER was placed into a cell with another individual while he had his hands cuffed and his ankles shackled.
59. One of the individuals who was being held in the same holding cell as plaintiff MCPHATTER told him in substance that he was smoking and one of the police officers recovered a quantity of marijuana from him when he tried to hide it in his sneaker. The police officer tried to charge plaintiff MCPHATTER with unlawful possession of marijuana, but instead, charged plaintiff DEJESUS with unlawful possession of the same marijuana that was recovered from the other individual.
60. Plaintiffs DEJESUS, JOHNSON, MCPHATTER and LUFTIG appeared before a judge in the arraignment part of the Kings County Criminal Court, they were charged with crimes that they did not commit and the judge released plaintiffs on their own recognizance.
61. Plaintiff DEJESUS was charged under docket number 2007KN074361 with felony counts of Assault in the Second Degree and Attempted Assault in the Second Degree, misdemeanor counts of Criminal Mischief in the Fourth Degree and Resisting Arrest

and violations of two counts of Disorderly Conduct and one count of Unlawful Possession of Marijuana. He was held in custody for over 24 hours.

62. Plaintiff JOHNSON was charged under docket number 2007KN074364 with felony counts of Assault in the Second Degree and Attempted Assault in the Second Degree, misdemeanor counts of Criminal Mischief in the Fourth Degree and Obstructing Governmental Administration in the Second Degree and a violation of Disorderly Conduct. He was held in custody for a little less than 24 hours.
63. Plaintiff MCPHATTER was charged under docket number 2007KN074366 with misdemeanor counts of Obstructing Governmental Administration in the Second Degree and Resisting Arrest and a violation of Disorderly Conduct. He was held in custody for over 18 hours.
64. Plaintiff LUFTIG was charged under docket number 2007KN074358 with misdemeanor counts of Obstructing Governmental Administration in the Second Degree and Resisting Arrest and a violation of Disorderly Conduct. He was held in custody for over 18 hours.
65. Plaintiffs DEJESUS, JOHNSON, MCPHATTER and LUFTIG were all forced to return to court numerous times to defend themselves against the false charges and to retain private criminal defense counsel to represent them in their criminal cases. The underlying criminal charges were ultimately dismissed and sealed against all plaintiffs.
66. Upon his release, plaintiff LUFTIG attempted to retrieve his cell phone, but the officers had broken his phone and deleted the video footage of the incident.

SECOND INCIDENT-OCTOBER 23, 2007

67. On or about October 23, 2007, at approximately 11:00 p.m., at the vicinity of 572 Warren Street, in the County of Kings and the City and State of New York, plaintiff RONALD MCPHATTER was walking near said area and defendant POLICE OFFICERS CHANCELLOR BISHOP, RORY MANGRA and ERIK MERIZALDE followed him. Plaintiff MCPHATTER met plaintiff TAHARQA DEJESUS and they walked towards the front of 572 Warren Street, where they both reside.
68. Defendant POLICE OFFICERS CHANCELLOR BISHOP, RORY MANGRA and ERIK MERIZALDE continued to follow plaintiffs MCPHATTER and DEJESUS and the officers blocked their path on the walkway, causing plaintiffs to walk around them to get into their building.
69. The officers cursed at plaintiffs, called plaintiffs names and harassed plaintiffs by stating in substance what's good tough guy, in a threatening manner.
70. Plaintiffs walked away from defendants and went into their building, but the defendants continued to follow plaintiffs and harass them.
71. Plaintiffs MCPHATTER and DEJESUS went into plaintiff DEJESUS' apartment and upon information and belief, defendants banged on the door and stated in substance, come out punks and they called plaintiffs bitch asses, bitches and suckers.
72. Plaintiff MCPHATTER waited inside of said apartment and when he believed that the defendants had left the building and it was safe to come out, he left the apartment and attempted to leave the building, but saw defendants inside of the lobby of said building.

73. The officers stated in substance, what's all the running for pussy, why did you run in the house punk and say something now. Plaintiff MCPHATTER asked the officers in substance to please leave him alone, that he is minding his own business and he begged the officers to stop following him and let him leave the building.
74. The officers stated in substance, aint nobody following you punk ass bitch and when plaintiff MCPHATTER attempted to leave the building, the officers followed him, stopped him and asked him for his identification.
75. Plaintiff MCPHATTER told the officers in substance that his identification was upstairs and he asked them why they needed to see his identification when they just saw him leave the building and they knew he lived there. Plaintiff MCPHATTER recorded a portion of the conversation on his cell phone and he called his mother to try to ask her to bring down his identification, but the officers grabbed him by the arm which held the phone, knocked the phone to the ground, threw him onto the floor and beat him, including, but not limited to, by punching, kicking and striking him repeatedly, pushing their knee into his back, mushing his face onto the floor and they cuffed him with his hands behind his back in an extremely tight manner.
76. Plaintiff MCPHATTER's mother observed the officers beating her son and she yelled for them to get off of him and to stop hitting him. One or more of the defendant police officers told her in substance to shut the fuck up and to mind her business.
77. Plaintiff TAHARQA DEJESUS heard plaintiff MCPHATTER yelling and he came out with a representative from the tenant's association and another individuals to see what was happening. Plaintiff DEJESUS and the others asked the officers in

substance for their badge numbers. One of the officers grabbed plaintiff DEJESUS, ordered him to put his hands behind his back and cuffed plaintiff DEJESUS with his hands behind his back in an extremely tight manner.

78. Both plaintiffs MCPHATTER and DEJESUS were thrown into a police vehicle, taken to the precinct and placed into a holding cell. They were fingerprinted, photographed, otherwise processed, put through the system and transported to central booking.
79. Plaintiffs MCPHATTER and DEJESUS appeared before a judge in the arraignment part of the Kings County Criminal Court, they were charged with crimes that they did not commit and the judge released plaintiffs on their own recognizance.
80. Plaintiff MCPHATTER was charged under docket number 2007KN081227 with a misdemeanor count of Resisting Arrest and a violation of Disorderly Conduct. After numerous court appearances, this matter was dismissed and sealed.
81. Plaintiff DEJESUS was charged under docket number 2007KN081256 with misdemeanor counts of Obstructing Governmental Administration in the Second Degree and Resisting Arrest. After numerous court appearances, this matter was adjourned in contemplation of dismissal and sealed six months later.
82. Both plaintiffs were forced to hire private defense counsel to represent them on these matters.

BOTH INCIDENTS

83. The above-mentioned acts committed against plaintiffs were all conducted in violation of plaintiffs' constitutional rights and were perpetrated by the defendants

under color of law. Plaintiffs allege that defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT are liable for the assault, battery, unlawful detention, false arrest and unlawful imprisonment under a theory of Respondeat Superior. Similarly, defendant CITY OF NEW YORK is liable for maliciously prosecuting plaintiff under a theory of Respondeat Superior. This is because, among other reasons, defendant CITY OF NEW YORK has tolerated and permitted a pattern of illegal actions against persons, including assault, battery, unlawful detention, false arrest and unlawful imprisonment, and has failed to maintain a proper system for reviewing these violations by police officers. As a result, New York City police officers are encouraged to believe that they can violate the rights of persons, particularly young, African-American and Hispanic males like plaintiffs with impunity.

84. As a result of the defendants' above-mentioned conduct, plaintiffs DEJESUS, JOHNSON, MCPHATTER and LUFTIG all suffered severe physical injuries requiring medical attention. Plaintiffs also suffered deprivation of their liberty, loss of reputation, violation of due process and other Federal and state constitutional rights, and extreme emotional, mental and psychological anguish, including, but not limited to, loss of appetite, loss of sleep, nausea, depression, humiliation, anxiety, irritability, nervousness, discomfort and impairment of enjoyment of life, performance of daily activities and in some cases, loss of benefits and/or wages.

FIRST CAUSE OF ACTION

Violation of Plaintiff Taharqa Dejesus' Federal Constitutional Rights

85. Plaintiff TAHARQA DEJESUS repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.
86. The detention of plaintiff without probable cause and without an arrest warrant was an abuse of power, constituted a seizure within the meaning of the Fourth Amendment to the United States Constitution and deprived plaintiff of his liberty.
87. The seizure and deprivation of plaintiff's liberty was unreasonable and without due process of law, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.
88. As a direct and proximate result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, all committed under color of their authority as police officers, and while acting within that capacity, plaintiff suffered physical harm, deprivation of his liberty and emotional damage, all of which is in violation of his rights under the Constitution and laws of the United States, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution and 42 U.S.C. §§1983, 1985, 1986 and 1988.
89. As a further result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, plaintiff was deprived of his rights and immunities secured by the Constitution and laws of the State of New York including, but not limited to, his rights to be secure in his person, to be free from unreasonable

search and seizure and punishment without due process, and to equal protection of the laws.

90. By assaulting and battering plaintiff and by subjecting plaintiff to false arrest and imprisonment, the defendants directly violated the rules and regulations of the New York City Police Department.

91. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

SECOND CAUSE OF ACTION

Violation of Plaintiff Shaka Johnson's Federal Constitutional Rights

92. Plaintiff SHAKA JOHNSON repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. The detention of plaintiff without probable cause and without an arrest warrant was an abuse of power, constituted a seizure within the meaning of the Fourth Amendment to the United States Constitution and deprived plaintiff of his liberty.

94. The seizure and deprivation of plaintiff's liberty was unreasonable and without due process of law, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

95. As a direct and proximate result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, all committed under color of their authority as police officers, and while acting within that capacity, plaintiff

suffered physical harm, deprivation of his liberty and emotional damage, all of which is in violation of his rights under the Constitution and laws of the United States, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution and 42 U.S.C. §§1983, 1985, 1986 and 1988.

96. As a further result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, plaintiff was deprived of his rights and immunities secured by the Constitution and laws of the State of New York including, but not limited to, his rights to be secure in his person, to be free from unreasonable search and seizure and punishment without due process, and to equal protection of the laws.
97. By assaulting and battering plaintiff and by subjecting plaintiff to false arrest and imprisonment, the defendants directly violated the rules and regulations of the New York City Police Department.
98. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

THIRD CAUSE OF ACTION

Violation of Plaintiff Ronald McPhatter's Federal Constitutional Rights

99. Plaintiff RONALD MCPHATTER repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 98 with the same force and effect as if more fully set forth at length herein.
100. The detention of plaintiff without probable cause and without an arrest warrant was

an abuse of power, constituted a seizure within the meaning of the Fourth Amendment to the United States Constitution and deprived plaintiff of his liberty.

101. The seizure and deprivation of plaintiff's liberty was unreasonable and without due process of law, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

102. As a direct and proximate result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, all committed under color of their authority as police officers, and while acting within that capacity, plaintiff suffered physical harm, deprivation of his liberty and emotional damage, all of which is in violation of his rights under the Constitution and laws of the United States, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution and 42 U.S.C. §§1983, 1985, 1986 and 1988.

103. As a further result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, plaintiff was deprived of his rights and immunities secured by the Constitution and laws of the State of New York including, but not limited to, his rights to be secure in his person, to be free from unreasonable search and seizure and punishment without due process, and to equal protection of the laws.

104. By assaulting and battering plaintiff and by subjecting plaintiff to false arrest and imprisonment, the defendants directly violated the rules and regulations of the New York City Police Department.

105. That by reason of the foregoing, plaintiff suffered serious physical and emotional

injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

FOURTH CAUSE OF ACTION
Violation of Plaintiff Robert Luftig's Federal Constitutional Rights

106. Plaintiff ROBERT LUFTIG repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.
107. The detention of plaintiff without probable cause and without an arrest warrant was an abuse of power, constituted a seizure within the meaning of the Fourth Amendment to the United States Constitution and deprived plaintiff of his liberty.
108. The seizure and deprivation of plaintiff's liberty was unreasonable and without due process of law, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.
109. As a direct and proximate result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, all committed under color of their authority as police officers, and while acting within that capacity, plaintiff suffered physical harm, deprivation of his liberty and emotional damage, all of which is in violation of his rights under the Constitution and laws of the United States, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution and 42 U.S.C. §§1983, 1985, 1986 and 1988.
110. As a further result of the above-mentioned unlawful and malicious acts committed by the individual police officer defendants, plaintiff was deprived of his rights and

immunities secured by the Constitution and laws of the State of New York including, but not limited to, his rights to be secure in his person, to be free from unreasonable search and seizure and punishment without due process, and to equal protection of the laws.

111. By assaulting and battering plaintiff and by subjecting plaintiff to false arrest and imprisonment, the defendants directly violated the rules and regulations of the New York City Police Department.
112. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

FIFTH CAUSE OF ACTION
Assault as to plaintiff Taharqa Dejesus

113. Plaintiff TAHARQA DEJESUS repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.
114. The individual police officer defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act(s) which threatened such contact to plaintiff and that such act(s) caused apprehension of such contact to plaintiff.
115. The individual police officer defendants were at all times agents, servants, and

employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.

116. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
117. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

SIXTH CAUSE OF ACTION
Assault as to plaintiff Shaka Johnson

118. Plaintiff SHAKA JOHNSON repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.
119. The individual police officer defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act(s) which threatened such contact to plaintiff and that such act(s) caused apprehension of such contact to plaintiff.
120. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are

therefore responsible for their conduct.

121. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
122. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

SEVENTH CAUSE OF ACTION
Assault as to plaintiff Ronald McPhatter

123. Plaintiff RONALD MCPHATTER repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 122 with the same force and effect as if more fully set forth at length herein.
124. The individual police officer defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act(s) which threatened such contact to plaintiff and that such act(s) caused apprehension of such contact to plaintiff.
125. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
126. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction

to hear and adjudicate such claims.

127. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

EIGHTH CAUSE OF ACTION
Assault as to plaintiff Robert Luftig

128. Plaintiff ROBERT LUFTIG repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 127 with the same force and effect as if more fully set forth at length herein.
129. The individual police officer defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act(s) which threatened such contact to plaintiff and that such act(s) caused apprehension of such contact to plaintiff.
130. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
131. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
132. That by reason of the foregoing, plaintiff suffered serious physical and emotional

injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

NINTH CAUSE OF ACTION
Battery as to plaintiff Taharqa Dejesus

133. Plaintiff TAHARQA DEJESUS repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 132 with the same force and effect as if more fully set forth at length herein.
134. The individual police officer defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiff, when they, in a hostile and/or offensive manner forcibly touched plaintiff without plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to plaintiff and caused such battery.
135. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
136. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
137. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TENTH CAUSE OF ACTION
Battery as to plaintiff Shaka Johnson

138. Plaintiff SHAKA JOHNSON repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 137 with the same force and effect as if more fully set forth at length herein.
139. The individual police officer defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiff, when they, in a hostile and/or offensive manner forcibly touched plaintiff without plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to plaintiff and caused such battery.
140. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
141. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
142. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

ELEVENTH CAUSE OF ACTION
Battery as to plaintiff Ronald McPhatter

143. Plaintiff RONALD MCPHATTER repeats, reiterates and realleges each and every

allegation contained in paragraphs marked 1 through 142 with the same force and effect as if more fully set forth at length herein.

144. The individual police officer defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiff, when they, in a hostile and/or offensive manner forcibly touched plaintiff without plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to plaintiff and caused such battery.
145. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
146. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
147. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWELFTH CAUSE OF ACTION
Battery as to plaintiff Robert Luftig

148. Plaintiff ROBERT LUFTIG repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 147 with the same force and effect as if more fully set forth at length herein.

149. The individual police officer defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiff, when they, in a hostile and/or offensive manner forcibly touched plaintiff without plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to plaintiff and caused such battery.
150. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
151. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
152. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

THIRTEENTH CAUSE OF ACTION
False Arrest as to plaintiff Taharqa Dejesus

153. Plaintiff TAHARQA DEJESUS repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 152 with the same force and effect as if more fully set forth at length herein.
154. The above-mentioned acts and conduct committed by the defendants constituted false arrest without cause or justification and defendants violated plaintiff's rights under

the Constitution and laws of the State of New York.

155. The defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of such confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
156. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
157. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
158. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

FOURTEENTH CAUSE OF ACTION
False Arrest as to plaintiff Shaka Johnson

159. Plaintiff SHAKA JOHNSON repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 158 with the same force and effect as if more fully set forth at length herein.
160. The above-mentioned acts and conduct committed by the defendants constituted false arrest without cause or justification and defendants violated plaintiff's rights under the Constitution and laws of the State of New York.
161. The defendants intended to confine plaintiff and, in fact, confined plaintiff, and

plaintiff was conscious of such confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

162. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.

163. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

164. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

FIFTEENTH CAUSE OF ACTION
False Arrest as to plaintiff Ronald McPhatter

165. Plaintiff RONALD MCPHATTER repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 164 with the same force and effect as if more fully set forth at length herein.

166. The above-mentioned acts and conduct committed by the defendants constituted false arrest without cause or justification and defendants violated plaintiff's rights under the Constitution and laws of the State of New York.

167. The defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of such confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

168. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
169. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
170. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

SIXTEENTH CAUSE OF ACTION
False Arrest as to plaintiff Robert Luftig

171. Plaintiff ROBERT LUFTIG repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 170 with the same force and effect as if more fully set forth at length herein.
172. The above-mentioned acts and conduct committed by the defendants constituted false arrest without cause or justification and defendants violated plaintiff's rights under the Constitution and laws of the State of New York.
173. The defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of such confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
174. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF

NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.

175. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
176. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

SEVENTEENTH CAUSE OF ACTION
False Imprisonment as to plaintiff Taharqa Dejesus

177. Plaintiff TAHARQA DEJESUS repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 176 with the same force and effect as if more fully set forth at length herein.
178. The above-mentioned acts and conduct committed by the defendants constituted false imprisonment and defendants violated plaintiff's rights under the Constitution and laws of the State of New York.
179. The defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of such confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
180. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.

181. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

182. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

EIGHTEENTH CAUSE OF ACTION
False Imprisonment as to plaintiff Shaka Johnson

183. Plaintiff SHAKA JOHNSON repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 182 with the same force and effect as if more fully set forth at length herein.

184. The above-mentioned acts and conduct committed by the defendants constituted false imprisonment and defendants violated plaintiff's rights under the Constitution and laws of the State of New York.

185. The defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of such confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

186. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.

187. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

188. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

NINETEENTH CAUSE OF ACTION
False Imprisonment as to plaintiff Ronald McPhatter

189. Plaintiff RONALD MCPHATTER repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 188 with the same force and effect as if more fully set forth at length herein.
190. The above-mentioned acts and conduct committed by the defendants constituted false imprisonment and defendants violated plaintiff's rights under the Constitution and laws of the State of New York.
191. The defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of such confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
192. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
193. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
194. That by reason of the foregoing, plaintiff suffered serious physical and emotional

injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWENTIETH CAUSE OF ACTION
False Imprisonment as to plaintiff Robert Luftig

195. Plaintiff ROBERT LUFTIG repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 194 with the same force and effect as if more fully set forth at length herein.
196. The above-mentioned acts and conduct committed by the defendants constituted false imprisonment and defendants violated plaintiff's rights under the Constitution and laws of the State of New York.
197. The defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of such confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
198. The individual police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, which are therefore responsible for their conduct.
199. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
200. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWENTY-FIRST CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision as to plaintiff Taharqa Dejesus

201. Plaintiff TAHARQA DEJESUS repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 200 with the same force and effect as if more fully set forth at length herein.
202. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individual police officer defendants who were unfit for the performance of police duties on the above-mentioned dates and times.
203. The failure of the Mayor of the City of New York and the Police Commissioner of the New York City Police Department to adequately hire, retain, train, supervise, discipline, or in any other way control the behavior of the individual police officer defendants in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of the New York City Police Department is evidence of the reckless disregard for the rights of the public, including plaintiff, and exhibited a lack of degree of due care which prudent and reasonable individuals would show in executing the duties of the Mayor and Police Commissioner.
204. Such conduct was carried out willfully, wantonly, maliciously and with reckless disregard for the dangers of harm and injury to the citizens of the State of New York, including plaintiff.

205. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

206. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWENTY-SECOND CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision as to plaintiff Shaka Johnson

207. Plaintiff SHAKA JOHNSON repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 206 with the same force and effect as if more fully set forth at length herein.

208. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individual police officer defendants who were unfit for the performance of police duties on the above-mentioned dates and times.

209. The failure of the Mayor of the City of New York and the Police Commissioner of the New York City Police Department to adequately hire, retain, train, supervise, discipline, or in any other way control the behavior of the individual police officer defendants in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of the New York City Police Department is evidence of the reckless disregard for the rights of the public, including plaintiff, and exhibited a lack of degree of due care which prudent and

reasonable individuals would show in executing the duties of the Mayor and Police Commissioner.

210. Such conduct was carried out willfully, wantonly, maliciously and with reckless disregard for the dangers of harm and injury to the citizens of the State of New York, including plaintiff.

211. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

212. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWENTY-THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision as to plaintiff Ronald McPhatter

213. Plaintiff RONALD MCPHATTER repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 212 with the same force and effect as if more fully set forth at length herein.

214. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individual police officer defendants who were unfit for the performance of police duties on the above-mentioned dates and times.

215. The failure of the Mayor of the City of New York and the Police Commissioner of the New York City Police Department to adequately hire, retain, train, supervise,

discipline, or in any other way control the behavior of the individual police officer defendants in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of the New York City Police Department is evidence of the reckless disregard for the rights of the public, including plaintiff, and exhibited a lack of degree of due care which prudent and reasonable individuals would show in executing the duties of the Mayor and Police Commissioner.

216. Such conduct was carried out willfully, wantonly, maliciously and with reckless disregard for the dangers of harm and injury to the citizens of the State of New York, including plaintiff.

217. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

218. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWENTY-FOURTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision as to plaintiff Robert Luftig

219. Plaintiff ROBERT LUFTIG repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 218 with the same force and effect as if more fully set forth at length herein.

220. Defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and its employees, servants and/or agents acting within the scope

of their employment did negligently hire, retain, train and supervise the individual police officer defendants who were unfit for the performance of police duties on the above-mentioned dates and times.

221. The failure of the Mayor of the City of New York and the Police Commissioner of the New York City Police Department to adequately hire, retain, train, supervise, discipline, or in any other way control the behavior of the individual police officer defendants in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of the New York City Police Department is evidence of the reckless disregard for the rights of the public, including plaintiff, and exhibited a lack of degree of due care which prudent and reasonable individuals would show in executing the duties of the Mayor and Police Commissioner.
222. Such conduct was carried out willfully, wantonly, maliciously and with reckless disregard for the dangers of harm and injury to the citizens of the State of New York, including plaintiff.
223. Pursuant to 28 U.S.C. §1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.
224. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWENTY-FIFTH CAUSE OF ACTION

Discrimination on the Basis of Race as to plaintiff Taharqa Dejesus

225. Plaintiff TAHARQA DEJESUS repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 224 with the same force and effect as if more fully set forth at length herein.
226. By their conduct as set forth above, the defendants demonstrated that they were motivated in their unlawful actions by reasons of racial discrimination against plaintiff, an African-American man, in violation of the New York Human Rights Law and the New York Executive Law, as well as under the laws of the Constitution of the United States, in particular the First, Fourth and Fourteenth Amendments, and her rights under the Constitution and other laws of the State of New York.
227. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWENTY-SIXTH CAUSE OF ACTION

Discrimination on the Basis of Race as to plaintiff Shaka Johnson

228. Plaintiff SHAKA JOHNSON repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 227 with the same force and effect as if more fully set forth at length herein.
229. By their conduct as set forth above, the defendants demonstrated that they were motivated in their unlawful actions by reasons of racial discrimination against plaintiff, an African-American man, in violation of the New York Human Rights

Law and the New York Executive Law, as well as under the laws of the Constitution of the United States, in particular the First, Fourth and Fourteenth Amendments, and her rights under the Constitution and other laws of the State of New York.

230. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWENTY-SEVENTH CAUSE OF ACTION
Discrimination on the Basis of Race as to plaintiff Ronald McPhatter

231. Plaintiff RONALD MCPHATTER repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 230 with the same force and effect as if more fully set forth at length herein.
232. By their conduct as set forth above, the defendants demonstrated that they were motivated in their unlawful actions by reasons of racial discrimination against plaintiff, an African-American man, in violation of the New York Human Rights Law and the New York Executive Law, as well as under the laws of the Constitution of the United States, in particular the First, Fourth and Fourteenth Amendments, and her rights under the Constitution and other laws of the State of New York.
233. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

TWENTY-EIGHTH CAUSE OF ACTION

Discrimination on the Basis of Race as to plaintiff Robert Luftig

234. Plaintiff ROBERT LUFTIG repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 233 with the same force and effect as if more fully set forth at length herein.
235. By their conduct as set forth above, the defendants demonstrated that they were motivated in their unlawful actions by reasons of racial discrimination against plaintiff, an African-American and Hispanic man, in violation of the New York Human Rights Law and the New York Executive Law, as well as under the laws of the Constitution of the United States, in particular the First, Fourth and Fourteenth Amendments, and her rights under the Constitution and other laws of the State of New York.
236. That by reason of the foregoing, plaintiff suffered serious physical and emotional injuries all to his damage in the sum of Five Hundred Thousand Dollars (\$500,000.00).

JURY DEMAND

237. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs demand the following relief jointly and severally against all defendants as follows:

- (1) On the FIRST CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars

(\$500,000.00);

- (2) On the SECOND CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars

(\$500,000.00);

- (3) On the THIRD CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars

(\$500,000.00);

- (4) On the FOURTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars

(\$500,000.00);

- (5) On the FIFTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars

(\$500,000.00);

- (6) On the SIXTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars

(\$500,000.00);

- (7) On the SEVENTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars

(\$500,000.00);

- (8) On the EIGHTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars

(\$500,000.00);

- (9) On the NINTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (10) On the TENTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (11) On the ELEVENTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (12) On the TWELFTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (13) On the THIRTEENTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (14) On the FOURTEENTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (15) On the FIFTEENTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (16) On the SIXTEENTH CAUSE OF ACTION against defendants, compensatory and

punitive damages in the amount of Five Hundred Thousand Dollars
(\$500,000.00);

(17) On the SEVENTEENTH CAUSE OF ACTION against defendants, compensatory
and punitive damages in the amount of Five Hundred Thousand Dollars
(\$500,000.00);

(18) On the EIGHTEENTH CAUSE OF ACTION against defendants, compensatory
and punitive damages in the amount of Five Hundred Thousand Dollars
(\$500,000.00);

(19) On the NINETEENTH CAUSE OF ACTION against defendants, compensatory
and punitive damages in the amount of Five Hundred Thousand Dollars
(\$500,000.00);

(20) On the TWENTIETH CAUSE OF ACTION against defendants, compensatory
and punitive damages in the amount of Five Hundred Thousand Dollars
(\$500,000.00);

(21) On the TWENTY-FIRST CAUSE OF ACTION against defendants CITY OF
NEW YORK and NEW YORK CITY POLICE DEPARTMENT, compensatory
and punitive damages in the amount of Five Hundred Thousand Dollars
(\$500,000.00);

(22) On the TWENTY-SECOND CAUSE OF ACTION against defendants CITY OF
NEW YORK and NEW YORK CITY POLICE DEPARTMENT, compensatory
and punitive damages in the amount of Five Hundred Thousand Dollars
(\$500,000.00);

- (23) On the TWENTY-THIRD CAUSE OF ACTION against defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (24) On the TWENTY-FOURTH CAUSE OF ACTION against defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (25) On the TWENTY-FIFTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (26) On the TWENTY-SIXTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (27) On the TWENTY-SEVENTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (28) On the TWENTY-EIGHTH CAUSE OF ACTION against defendants, compensatory and punitive damages in the amount of Five Hundred Thousand Dollars (\$500,000.00);
- (29) That plaintiff recovers the cost of the suit herein, including reasonable attorneys fees, pursuant to 42 U.S.C. §1988; and

(30) That plaintiff has such other and further relief as this Court shall deem just and proper.

Dated: November 30, 2010
New York, New York

/S/

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